



999

STATE OF COLORADO

DIVISION OF MINERALS AND GEOLOGY

Department of Natural Resources

1313 Sherman St., Room 215

Denver, Colorado 80203

Phone: (303) 866-3567

FAX: (303) 832-8106



November 29, 1999

Mr. John Lohr
Southdown Co., Inc.
P.O. Box 529
Lyons, CO 80540

Bill Owens
Governor

Greg E. Walcher
Executive Director

Michael B. Long
Division Director

RE: The Division of Minerals and Geology's (DMG) Request for a Technical Revision to the Permit for the Southdown Inc. Lyons Plant, Lyons Quarry, Permit No. #M-77-208

Dear Mr. Lohr,

A technical revision to modify your permit to include the Cement Kiln Dust (CKD) disposal operations at the "C" Pit of Lyons Quarry, Permit No. #M-77-208 was requested on October 18, 1999. Based on a meeting held with the Division of Minerals and Geology (DMG) staff on November 24, 1999, we would like to clarify the DMG position regarding this request.

After review of information submitted by your company over the last three months, it has been concluded that the reclamation measures already in place to mitigate the environmental effects of CKD disposal should be specifically written into the current permit in order for DMG to include the cost for these activities in the reclamation bond, and in order to codify their implementation. This in no way implies that the management practices or operations at the quarry have been inadequate prior to this review.

DMG is currently examining all permitted sites which contain CKD disposal, in order to bring these sites into regulatory compliance. Our request for a technical revision typically how DMG handles such situations.

We have received your request for an extension of the due date for a submittal of a technical revision to December 1, and we have no problem with extending this submittal date. If you have any further questions, please contact me at (303) 866-3567.

Sincerely,

Christina L. Kamnikar

Environmental Protection Specialist

Cc: Carl B. Mount, DMG
H. Bruce Humphries, DMG
Harry H. Posey, DMG
Paul Banks, Banks & Gesso
St. Vrain Community Watch Dogs Group

* * * COMMUNICATION RESULT REPORT (NOV.29.19 4:00PM) * * *

TTI DIV/MINERALS&GEOLOGY

FILE MODE	OPTION	ADDRESS (GROUP)	RESULT	PAGE
050 MEMORY TX		3032748329	OK	P. 2/2

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FAX COVER SHEET (Fax # 303-832-8106)TO: Paul BanksCO/AGENCY: Banks & GessoNo. of Pages Sent: 1FROM: CL Kamislear FAX NO.: (303) 274-8329**MESSAGE TO RECIPIENT:**

Letter regarding Southdown

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DATE: 11/29/99

PROGRAM: MINS. ☒ COAL ☐ AML ☐ M. SAFETY ☐

TIME TO BE SENT: ASAP ☒ or NIGHT RATE ☐

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FAX COVER SHEET (Fax # 303-832-8106)

TO: John Lohr

CO/AGENCY: Southdow

No. of Pages Sent: 1

FROM: GL Kaniukar FAX NO.: (303) 823-2199

MESSAGE TO RECIPIENT:

CKD letter

DATE: 11/29/99

PROGRAM: MINS. ☒ COAL ☐ AML ☐ M. SAFETY ☐

TIME TO BE SENT: ASAP ☒ or NIGHT RATE ☐

* * * COMMUNICATION RESULT REPORT (NOV.29.1994 4:02PM) * * *

TTI DIV/MINERALS&GEOLOGY

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CKD letter